

**BIBEK DEBROY**

*Professor, Centre for Policy Research and
International Management Institute*

USHER IN A NEW ORDER

Archaic laws with remnants of colonial legacies must be scrapped or changed. Better governance will be possible only if there are better laws.

Bad laws are the worst sort of tyranny." That was Edmund Burke, speaking in Bristol before the 1780 elections. Burke is remembered most for his speech at the Warren Hastings trial. That's worth remembering, because most of our laws are of colonial vintage, even if they don't go as far back as Hastings. The word "law" can mean specific statutes (Centre or state) or non-codified common law traditions or administrative law. The Latin word "desuetudo" means outdated, that is, no longer customary. Hence, in civil law jurisdictions, there is a principle of desuetude, allowing lapse of non-enforceable or non-enforced legislation, even if not specifically repealed. Common law traditions don't normally have desuetude and India is no exception. For instance, in 1818, a court in England held trial by combat to be a defendant's valid right. There are old laws in England too. Cabs are governed by Hackney Carriage Acts requiring them to stock enough hay for horses. However, in England, no one is going to harass cab-drivers and demand bribes because they aren't obeying an old and dysfunctional statute. There's no such guarantee in India. There is a Sarais Act of 1867. Under this, a "sarai" has to offer passers-by free drinks of water and a Delhi five-star hotel was harassed, though not prosecuted, because it didn't do this.

Let's assume you are a male, more than 14 and live in Delhi. Do you know the collector can requisition your services to destroy locusts and if you refuse, you can be fined Rs 50 or imprisoned for 10 days? You will know locusts have arrived because there will be a beating of drums. This is by virtue of the 1949 East Punjab Agricultural Pests, Diseases and Noxious Weeds Act, ap-

plicable to Delhi. A vintage car must have been built before 1930, so this isn't a vintage statute.

In a federal jurisdiction, statutes can be Union- or state-level. We still don't have a complete inventory of all state-level statutes. Some states have begun listing, but no one is sure these lists are exhaustive. For the Union, however, there is an India Code. Depending on how one counts statutes (are amending ones counted separately?), there are roughly 2,000 in this list. The two earliest (Bengal Indigo Contracts Act and Bengal Districts Act) are from 1836. In the vintage category, there are six from the 1830s, nine from the 1840s, 34 from the 1850s, 21 from the 1860s, 33 from the 1870s, 37 from the 1880s, 34 from the 1890s, 18 from the 1900s, 27 from the 1910s and 31 from the 1920s.

There are instances where the entire statute is dysfunctional. There are more instances where the entire statute may not be dysfunctional, but several sections are. Since additional statutes may have been enacted in the same area subsequently, there are issues of harmonisation and unification, with differing case laws contributing to more confusion. Nor is this only about statutes, since administrative law (rules, orders, regulations) can also be outdated. Rules under 1948 Factories Act insist on earthen pots for drinking water and don't accept water coolers as substitutes. You may have fire extinguishers but rules stipulate red-painted buckets with water and sand.

In this reform era, some state intervention contemplated in these old statutes can be legitimately questioned. Does the government actually need to decide in which area shops will be closed on what day? Should

PRESCRIPTION

➤ **There should be a sunset clause for all laws unless there is a need for continuation**

➤ **There must be a cost-benefit exercise before any new law is enacted**

➤ **On old laws, some repeals can be done by the executive rather than the legislature**